

Present:
Mr. Justice S M Kuddus Zaman
CIVIL REVISION NO.2973 of 2022.

Md. Jamshed Ali and others

...Petitioners

-Versus-

Upozilla Health Complex and others

...opposite parties

Mr. Sk. Md. Jalal Uddin, Advocate

...For the petitioners

No one appears

...For the opposite parties

Heard & Judgment on: 27.08.2024.

This Rule was issued calling upon the opposite party Nos.1 and 2 to show cause as to why the impugned judgment and order dated 24.01.2018 passed by the learned District Judge, Kurigram in Civil Revision No.17 of 2016 rejecting the said revision affirming the judgment and order dated 29.03.2016 passed by the learned Senior Assistant Judge, Ulipur, Kurigram rejecting the petition under sections 151 of 152 for correction of plaint and decree of Other Suit No.71 of 2005 should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the petitioner as plaintiff instituted Other Suit No.71 of 2005 for partition seeking a separate saham for **11¹/₅** decimal land appertaining to S. A.khatian No.598 of mouza Zonaidanga and J.L. No.105 under Kurigram District and above suit was decreed ex parte in

preliminary form on 22.07.2012 and above decree was made final on the basis of the Advocate Commissioner's report dated 25.07.2012.

On 10.09.2015 the plaintiffs filed a petition under sections 151 and 152 of the Code of Civil Procedure for amendment of the name of the mouza and J.L. number of the schedule property. Instead of mouza Zonaidanga J.L. No.105 mouza Ulipur and J.L. NO.108 were sought to be substituted.

On consideration of submissions of the learned Advocates for respective parties and materials on record the learned Senior Assistant Judge rejected above petition by order dated 29.03.2016.

Being aggrieved by above judgment and order of the learned Senior Assistant Judge above plaintiffs preferred Civil Revision No.17 of 2016 to the District Judge, Kurigram who rejected above revision and affirmed the judgment and order of the trial court.

Being aggrieved by above judgment and order of the learned District Judge above petitioners as petitioners moved to this court with this petition and obtained this rule.

Mr. Sk. Md. Jalal Uddin learned Advocate for the petitioner submits that the plaintiffs have already got possession of disputed $11\frac{1}{5}$ decimal land by

execution of the preliminary decree. No appeal was preferred by the defendants against the preliminary or final decree passed by the courts below. It was subsequently revealed that inadvertently the mouza name and J.L. number of the disputed property was mentioned erroneously. Instead of mouza Ulipur and J.L. No.105 erroneously mouza Zonaidanga and J.L. No.108 were mentioned in the schedule of the plaint. As such the learned District Judge should have appreciated above materials on record and allowed the civil revision and passed a direction under the trial court below for making necessary amendments of the schedule of the land but the learned District Judge committed serious illegality and erroneously dismissed the civil revision of the petitioners which is not tenable in law.

No one appears on behalf of the opposite party at the time of hearing of this revision.

I have considered the submissions of the learned Advocate for the petitioner and carefully examined all materials on record.

Admittedly in the schedule to the plaint of Other Class Suit No.71 of 2005 the petitioners who were plaintiffs stated that disputed $11\frac{1}{5}$ decimal land appertains to mouza Zonaidanga and J. L. No.105 and on the basis of above description and

identity of the disputed land above suit for partition was decreed in a preliminary form. On the basis of an application filed by the plaintiffs the learned Senior Assistant Judge appointed an Advocate Commissioner and on the basis of his report above preliminary was made final.

After more than three years of the passing of above final decree the petitioner filed this petition under sections 151 and 152 of the Code of Civil Procedure for correction of the name of the mouza and J.L. number, as mentioned above. Above changes or amendments or corrections of the mouza and J.L. number in fact changes the identity and location of the disputed property.

Section 152 of the Code of Civil Procedure provides for correction of clerical and arithmetical mistakes in the judgment, decree and orders causing from an accidental slip or omission. There is no claim of the petitioner that above errors in mentioning the name and J.L. number of the mouza of the disputed property were caused in the impugned judgment and decree or order due to clerical and arithmetical mistake arising out from an accidental slip or omission. The court did not commit any error or omission in mentioning the name of the mouza and J.L. number.

Above name of the mouza and J.L. number were stated by the plaintiffs in the schedule of the plaint and on the basis of the same the suit was decreed twice, once in preliminary form and secondly in the final form. As such sections 151 or 152 of the Code of Civil Procedure is of no help to the petitioners.

The proposed corrections or amendments is not clerical and arithmetical error but involves the identity of the disputed property.

In above view of the facts and circumstance of the case and materials on record I hold that the learned Judges of the courts below on correct appreciation of materials on record have rightly rejected above petition which calls for no interference.

I am unable to find any substance in this rule and the rule issued in this connection is liable to be discharged.

In the result, the Rule is discharged without any order as to costs.

Let a copy of this judgment be transmitted down at once.